A Simple Guide to Your Sole and Exclusive Agency Agreement

Your Agency Agreement is written in the formal language of a legal document. Here's what it actually means for you, in plain English.

WHAT YOU'RE APPOINTING US TO DO

You're appointing McGuire Real Estate as your **sole and exclusive agent** to market and sell your property: the only agency working on the sale, backed to negotiate, handle the paperwork, and do what it takes to bring it home.

HOW LONG IT RUNS

- **Starts and keeps going:** the agreement kicks off on the Date of Commencement and runs until it's cancelled; it doesn't expire on its own.
- **First 90 days:** we're both fully committed, giving the campaign a genuine run (or your shorter Review Date, if we've agreed one).
- **From there:** either of us can step away at any time, with 7 days' written notice.
- **Cooling-off:** by law, you can also cancel by 5pm the working day after you receive your copy of the agreement, no questions asked.

OTHER WAYS THIS CAN WRAP UP

- **Off-Market Listing:** you'll get a written update at least once a month, guaranteed, or you're free to cancel.
- **Keeping things honest:** we'll end it immediately if you ask us to do something unlawful or unethical, misrepresent the property, hide a material change to it, or mislead us about your identity or who you're acting for.
- **Mutual agreement:** both of us can agree in writing to end it at any time; neither of us can do this alone.

WHAT YOU'RE AGREEING TO

- **Warranties:** what you tell us (condition, defects, meth history, weathertightness) is honest and to the best of your knowledge, not a guarantee.
- **Access:** we'll collaborate to flag hazards, and visiting professionals sign our access form.
- **Marketing material:** we can use what we create; you keep the rights to anything you've paid for.
- **Identity checks:** we must verify your identity before acting for you, as the law requires.
- **Confidentiality:** the agreement's terms stay between us, except where the law requires disclosure.

BUYERS WE MEET THROUGH YOUR LISTING

- **Their privacy:** we owe buyers confidentiality too, so we won't confirm or deny dealing with them elsewhere, and our silence isn't evidence of anything.
- **No claim on other deals:** if a buyer we meet through your listing later engages us for something unrelated, that's between us and them; you have no claim to any fee from it.

IF WE EVER WANT TO BUY YOUR PROPERTY

- We, or anyone related to us, can only do this with your **written consent** and an **independent valuation** (which we pay for) given to you first. If we don't follow this, you can cancel and we lose our commission.

WHAT YOU PAY, AND YOUR DEPOSIT

Your commission is whatever's recorded on the front page (Appointment of Agency D); that governs, not any figure quoted elsewhere. It's tiered: below a set sale price, it's a flat fee rather than a percentage, because a straight percentage doesn't cover the fixed cost of marketing a lower-value home; above that price, the flat fee stays, plus a percentage of the amount above it. Separately (Appointment of Agency E), you also pay marketing costs and a $500 administration fee (including GST); the administration fee covers our AML/CFT identity checks and other onboarding work, is payable on signing, and applies whether or not the property sells. Marketing costs are usually refunded if the listing is withdrawn before they're spent. Any deposit is held by an independent stakeholder (NZRET or Public Trust), not us, for at least 10 working days; our commission and expenses are paid from settlement or the deposit once it can be released.

WE'RE HERE TO HELP

Talk to us first, we want to sort it out: contact **Tim McGuire**, 027 562 7207, tim@mcguire.co.nz. You're never required to use our in-house process, and you can contact the **Real Estate Authority** (0800 367 7322) at any time, whether or not you've raised it with us.

This guide is a plain-language summary for convenience only. It does not replace, override, or form part of your Agency Agreement; if anything here differs from the Agreement, the Agreement applies. Licensed REA 2008.

McGuire REAL ESTATE

Appointment of Agency

This page is completed for each new listing. The Terms and Conditions from page 2 onwards are the Agency's standard terms and do not need to be altered.

A. Client(s):

_____

in the capacity of **Trustee / Director / Authorised Signatory / Agent / Attorney** (circle one)

Is the Client registered under the Goods and Services Tax Act in respect of the sale of the property or shall be so registered at settlement?

☐ No ☐ Yes, the GST number is _____ .

B. Property:

_____

C. Period of Agency:

Subject to 2.1 herein, the Date of Commencement of the Sole and Exclusive Agency is _____ .

The Review Date is ninety (90) days from the Date of Commencement of the Sole and Exclusive Agency in accordance with 2.1 unless a date is stipulated here: _____.

D. Upon success sale of the property, the commission (subject to Clause 5.2) is:

Fee: for any Sale Price up **to $250,000 the fee is $_____**
and: for any portion of the Sale Price **exceeding $250,000 the fee is _____%**
plus: GST;

For example,

☐ based upon the Client's asking price

☐ based upon the median appraised value

a Sale Price of $_____ would mean an estimated commission of $_____ plus GST.

E. The client agrees to pay the following for marketing and expenses (as distinct from D), payable on signing this agreement:

1. A LIM shall be ordered by the Agent at a cost of $425.00 (including GST);
2. Advertising and marketing costs of $ _____ (including GST) in accordance with 6.1 herein; and
3. $500 administration fee (including GST), in accordance with clause 6.2 herein.

Signed _____

For _____ Date

Signed _____

For _____ Date

Signed _____

By Licensee Timothy McGuire REA#20117983 on behalf of the Agent Date

Terms and Conditions

These are the Agency's standard terms of business and apply to every listing without amendment.

1.0 Appointment

The Client appoints McGuire Real Estate Limited also trading as McGuire Real Estate and McGuire ("Agent") a licensed real estate agent (REAA 2008) as the Client's agent for the sale of the Property specified in Appointment Of Agency B herein. Pursuant to this appointment, the Agent is authorised to market the Property, conduct negotiations and to prepare any Sale and Purchase Agreements, Auction or Tender documents and do all other things as may be necessary or required to give effect to a sale of the Property. Such work may be conducted by the Agent or through a Branch Manager or Authorised Representative of the Agent, (herein "Salesperson" or "Licensee"), and those persons conducting such work are referred to as Licensees in this agreement.

2.0 Agency

2.1 Sole and Exclusive Agency: The Client hereby appoints the Agent as their sole and exclusive agent for the purpose of marketing and selling the property. This agency shall commence on the Date of Commencement of Sole and Exclusive Agency in Appointment Of Agency (C) herein and shall continue in force as a sole and exclusive agency unless and until it is cancelled in accordance with this clause 2.1. This sole and exclusive agency may not be cancelled by either party until the Review Date specified in Appointment of Agency (C) or, if no Review Date is specified, until ninety (90) days after the Date of Commencement, except as required by law (including under section 130 of the Real Estate Agents Act 2008). After that date, either party may cancel this sole and exclusive agency at any time by giving the other seven (7) days' written notice in accordance with Clause 17.0 (Notices) herein. Unless and until the Client gives the Agent express written notice of cancellation (or the Agent gives the Client such notice), this sole and exclusive agency continues on these terms, and does not expire or lapse merely because ninety days, the Review Date, or any other period, has passed. Should the Client withdraw the property from the market and subsequently list, advertise, or enter into an agreement for the sale of the property, this Agreement shall remain in full force and effect until written notice of cancellation has been duly given and has taken effect. For the avoidance of doubt, nothing in this clause 2.1 limits the Client's statutory rights under sections 130 and 131 of the Real Estate Agents Act 2008, including the Client's right to cancel by 5pm on the working day after a copy of this agreement is given to the Client (section 130), and the Client's right to cancel this sole agency agreement at any time after the ninety-day period referred to above (section 131), which applies regardless of anything else stated in this agreement. See also clause 2.2, including the further grounds on which this agreement may be terminated, and clause 2.2.3's automatic marketing-lapse termination and clause 2.2.4's Off-Market Listing communication standard.

2.2 Notwithstanding clause 2.1, and at any time including within the first ninety (90) days referred to in that clause, this agreement may also end as follows:

2.2.1 by the Agent, by written notice in accordance with Clause 17.0 (Notices), if the Client instructs or requests the Agent (or any Licensee) to do anything unlawful or unethical, or anything that would place the Agent or any Licensee in breach of the Real Estate Agents Act 2008, the Real Estate Agents Act (Professional Conduct and Client Care) Rules 2012, or any other applicable law; or

2.2.2 by mutual written agreement, signed by both the Agent and the Client; this clause 2.2.2 requires the agreement of both parties, and neither party may end this agreement unilaterally under this clause 2.2.2.

2.2.3 automatically, without any requirement for notice from either party, if the Property has ceased to be actively marketed for sale for more than twenty (20) consecutive working days, other than at the Client's request or with the Client's prior written agreement. For this purpose, the Property is treated as actively marketed only while it remains currently and continuously listed for sale on at least one major online real estate listing site used by the Agent (such as realestate.co.nz or Trade Me Property), or otherwise being actively promoted by the Agent in accordance with the marketing plan referred to in clause 6.1. If there is a gap in such listing or promotion of more than twenty (20) consecutive working days, this sole and exclusive agency ends automatically on the expiry of that twenty (20) working day period, for the purposes of this clause 2.2.3, without either party needing to do anything further. Promptly after this clause 2.2.3 takes effect, the Agent will give the Client written confirmation that the agency has ended and of the date on which it ended. This clause 2.2.3 does not apply while the Property is being marketed as an Off-Market Listing in accordance with clause 2.2.4, which applies instead; or

2.2.4 by the Client, by written notice in accordance with Clause 17.0 (Notices), if the Property is being marketed as an Off-Market Listing and the Agent fails to provide the Client with a written update on marketing activity and any interest received at least once in every calendar month. An "Off-Market Listing" is a listing of the Property that, by agreement between the Agent and the Client, is not publicly advertised online or in print but is marketed by the Agent privately to prospective purchasers, for example by direct approach or through the Agent's own database of buyers. This monthly written update obligation is in addition to, and does not limit, the Agent's other obligations to keep the Client informed.

2.2.5 by the Agent, if the Client has intentionally misrepresented the Property to the Agent, made or permitted a material change to the Property without disclosing that change to the Agent, or deceived the Agent as to the Client's identity or as to the identity of any person or entity on whose behalf the Client is acting, that holds an interest in the Property, or that is otherwise a party to this agreement. This includes, without limitation, supplying the Agent with a forged, altered, or otherwise misleading LIM report, certificate of title, or other official document, or causing or allowing an entity that holds title to the Property to be struck off, dissolved, or otherwise altered in a way that misleads the Agent. This clause 2.2.5 is in addition to, and does not limit, the Agent's rights under clause 10.1 (Indemnity) or otherwise at law.

2.3 For a period of ten working days from the date of signing this agreement, the persons specified here below shall be excluded from the terms of this agency; should the specified persons fail to engage in negotiations for the sale and purchase of the Property, these persons shall be included in the terms of this agreement:

_____

_____

3.0 Prior Agency

3.1 ☐ The Client warrants that, immediately prior to signing this agreement the Client has not appointed any other real estate agent to sell the Property; or

3.2 ☐ The Client has appointed the following real estate agent/s prior to signing this agreement:

Name of agency	Period of agency ending	Type of agency

Note: If a sale is effected under a general agency agreement by or through the instrumentality of any other real estate agent authorised by the Client, then the Client may be liable to pay full commission to more than one agent. If the Client is entering into a sole agency under this agreement, and there is a prior general agency still in effect, the Client should ensure that the prior general agency agreement is cancelled and provide written confirmation to the agent that this has been done or should give written authority to the Agent to do so on the Client's behalf.

FURTHER NOTE – IMPORTANT PLEASE READ: If the Client has entered into a sole agency with any other real estate agent, the Client may be liable to pay full commission to more than one agent if a sale is effected during the term of the prior sole agency, regardless of whether or not the sale is by or through the instrumentality of the sole agent. The Client should not sign this agency agreement if there is a current sole agency held by another real estate agent.

4.0 Additional Authorities – Sale Method (Optional)

4.1 ☐ Auction Authority: The Client appoints the Agent to offer the Property for sale by public auction on _____
If the Property for sale by auction is subject to a reserve price, this must be notified to the Agent in writing prior to the auction. If the Property is sold by public auction, the Client authorises the Agent to sign on its behalf the agreement that forms part of the particulars and conditions of sale used by the Agent for conducting the sale by auction.

4.2 ☐ Tender Authority: The Client appoints the Agent to offer the Property for sale by public tender with the public tender closing on _____ or as otherwise agreed.

4.3 The Client appoints the Agent to (select one/ delete others):

4.3.1 ☐ offer the property for sale by Private Agreement at Deadline closing on _____

4.3.2 ☐ offer the property for sale by Private Agreement at Ballot drawn on _____

4.3.3 ☐ offer the property for sale by Private Agreement at Timed Sale closing on _____

4.4.4 ☐ offer the property for sale by Private Agreement inviting Expressions of Interest

4.4.5 ☐ offer the property for sale by Private Agreement inviting offers by Negotiation

4.4.6 ☐ offer the property for sale by Private Agreement for a Fixed Price of no less than $ _____

5.0 Commission

5.1 Payment of Commission: The Client must pay the Agent the commission on the terms set out in this agreement if:

5.1.1 the Client enters into an agreement to sell or exchange the Property, or part of it, at any time during the term of the agency and the agreement is or becomes unconditional, whether during or after the term of the agency; or

5.1.2 the Client enters into a private agreement to sell or exchange the Property, or part of it, within a period of 6 months following the date of expiry, cancellation, or termination of the agency, through the instrumentality of the Agent or to a purchaser introduced by the Agent, and the agreement is or becomes unconditional, whether during or after the 6 months period. In this subclause 'private agreement' means any agreement to sell or exchange the Property, or part of it, in the absence of any effective agency agreement between the Client and a real estate agent holding a licence under the Real Estate Agents Act 2008.

5.1.3 Unless otherwise stated, the Commission is immediately payable upon the contract becoming unconditionally confirmed so as to effect a sale of the Property.

5.1.4 The Agent delegates to its Licensees negotiation of an Agreed Commission (5.2),

5.2 Agreed Commission: The commission payable to the Agent for this listing, including the tiered structure by which it is calculated, is as set out in Appointment of Agency (D).

6.0 Expenses and Marketing Packages

6.1 Marketing Costs: In addition to and separate from 5.2 Commission, the Client agrees to pay the Marketing Costs specified in Appointment of Agency (E) herein for advertising and marketing the Property (as detailed in the marketing plan included in the appraisal). The Marketing Costs are invoiced and payable through List Now (or such other third-party marketing funding and invoicing provider as the Agent may from time to time nominate), on that provider's own payment terms, and are payable immediately upon the signing of this agreement or as soon as practically possible thereafter. List Now is independent of the Agent and contracts directly with the Client on its own terms; the Agent gives no financial or credit advice about, and accepts no liability for, those terms. In the event the Sole Agency period expires, or the General Agency is cancelled, or the Property is withdrawn from the market, the Client remains liable for Marketing Costs already incurred as at the date of expiration, cancellation, or withdrawal, in accordance with List Now's payment terms.

6.2 Administration Fee: The Client agrees to pay the administration fee specified in Appointment of Agency (E), invoiced and payable through List Now (or such other provider as the Agent may from time to time nominate under clause 6.1), upon the signing of this agreement. This fee covers the Agent's costs of undertaking customer due diligence and the other steps required under the AML/CFT Act (see clause 12), and of completing the Agent's other statutory and administrative onboarding obligations in respect of this listing. The administration fee is payable regardless of whether the Property is sold, is separate from and in addition to the Commission payable under clause 5.2 and the Marketing Costs payable under clause 6.1, and is non-refundable once the Agent has commenced the customer due diligence process.

6.3 Should the Property be sold or withdrawn from sale prior to the scheduling and payment for any advertising incurred on behalf of the Client the Agent shall engage all reasonable effort to withdraw all scheduled advertising and to arrange for List Now to return all remaining and/or unspent marketing monies to the Client within seven (7) working days. The Agent shall not be held liable should List Now or any other third party decline or delay the withdrawal and/or refund of advertising scheduled on behalf of the Client.

6.4 **Payment Provider:** Payment of expenses under this clause 6.0, including the Marketing Costs and the administration fee, is made through List Now (www.listnow.co.nz) or such other third-party marketing funding and invoicing provider as the Agent may from time to time nominate. List Now contracts directly with the Client on its own terms and conditions, which are independent of this agreement; the Agent gives no financial or credit advice in respect of those terms and accepts no liability for them.

6.5 **Fallback to Direct Invoicing:** If the Client has any issue with List Now, or fails to complete List Now's onboarding or payment process within a reasonable time, the Agent may invoice the Client directly for any Marketing Costs and/or administration fee then owing, and the Client agrees to pay that invoice on demand. This clause 6.5 does not limit the Agent's other rights under this clause 6.0.

7.0 Agent's Statement relating to Rebates, Discounts and Other Commissions

7.1 The Agent confirms that, in relation to any expenses for or in connection with any real estate agency work carried out by the Agent for the Client in connection with the transaction covered by this agency agreement:

7.1.1 ✓the Agent shall not receive, and is not entitled to receive, any rebates, discounts, or commissions, or

7.1.2 ☐ the Agent shall receive, or is entitled to receive, the rebates, discounts, and commissions specified below.

Expenses to be incurred	Provider of rebate, discount or commission	Amount of rebate, discount or commission

**Estimates must be clearly marked as such. Note: Expenses means any sum or reimbursement for expenses or charges incurred in connection with services provided by an agent in the capacity of agent.*

8.0 Deposit

8.1 The Client acknowledges and agrees:

8.1.1 the Agent is entitled to receive a deposit on the Client's behalf, to be held by the agent as a stakeholder; and

8.1.2 the Agent is entitled to deduct its commission, and any Marketing Costs or administration fee then invoiced directly to the Client under clause 6.5, from the deposit (whether held by NZRET or by Public Trust as described in 8.1.4), subject to the requirements of section 123 of the Real Estate Agents Act 2008. This provision requires the Agent to hold the deposit for not less than 10 working days, and to continue to hold the deposit if the Agent receives a written notice of requisition or objection in respect of the title to any land affected by the transaction, in the absence of a Court order or written authority signed by all the parties to the transaction ordering or authorising the release of the deposit. Where the Property being sold is a unit title, the Client agrees that this deduction shall be delayed until completion of the obligations under sections 147 and 148 of the Unit Titles Act 2010; and

8.1.3 if the deposit is not received by the Agent or in accordance with 8.1.4, the Client shall pay the Agent the commission, and any Marketing Costs or administration fee invoiced directly under clause 6.5, immediately on receipt of an invoice, and

8.1.4 New Zealand Real Estate Trust (NZRET), an independent trust account service provided by SafeKiwi (New Zealand) Limited, is entitled to nominate NZRET's account for payment. Public Trust is the custodian for the deposit who shall receive, hold and disburse monies on behalf of vendors and purchasers. Terms of Use can be viewed at www.realestatetrust.co.nz/termsofuse

9.0 Client Warranties

9.1 The person signing this agreement as or on behalf of the Client warrants that he or she has full authority to do so and:

9.1.1 the information regarding all affiliated parties in the appended Verification of Ownership form is true and accurate.

9.2 The Client warrants that, having made proper enquiries, to the best of the Client's knowledge and belief:

9.2.1 the information provided in this agreement (including but not limited to the attached Property Description) is correct;

9.2.2 the Property is not subject to any defects or hazards, requisitions or notices from any party other than those identified in this agreement, if any; and

9.2.3 has not omitted any material information to the Agent and

9.3 The Client warrants that the Property is not, and has not been, subject to any weathertightness issues known to the Client other than as may be identified in this agreement.

9.4 The Client warrants that the Property is not, and has not been, used for the manufacture of methamphetamine, to the Client's knowledge, or been subject to methamphetamine contamination known to the Client, other than as may be identified in this agreement.

Note: If the Client is unable to provide any of the above warranties, relevant details should be set out below:
Additional comments regarding Client Warranties (if required) – use additional sheets if needed:

_____

_____

_____

9.5 For the avoidance of doubt: (a) the warranties given by the Client in this clause 9 are limited to matters actually known to the Client, are provided honestly and to the best of the Client's knowledge and belief, and are not an absolute guarantee; (b) the Client does not warrant any matter of law, building consent or code compliance, resource consent or planning compliance, structural condition, or title interpretation, unless the Client has expressly confirmed that matter in writing; (c) the Client is not responsible for information independently obtained, interpreted, or represented by the Agent or its Licensees to prospective purchasers; (d) information supplied by the Client is not to be represented to prospective purchasers as a warranty or guarantee beyond what the Client has actually and expressly stated; and (e) nothing in this agreement creates a warranty by the Client beyond the Client's obligations under New Zealand law.

10.0 Indemnity

10.1 The Client (and if more than one, jointly and severally) indemnifies the Agent, the Licensees and any of their respective employees, agents or contractors against losses, damages, claims or other liability directly caused by the Client's deliberate or negligent provision of materially false information in this agreement.

11.0 Disclosure of Information

11.1 The Client acknowledges that the Agent is required under the Real Estate Agents Act (Professional Conduct and Client Care) Rules 2012 to disclose known defects to purchasers or potential purchasers and not to withhold information that should by law or in fairness be provided to purchasers or potential purchasers. The Client also acknowledges that where it would appear likely that the Property may be subject to hidden or underlying defects, then the Agent is required to either:

11.1.1 obtain confirmation from the Client, supported by evidence or expert advice, that the Property is not subject to defect; or
11.1.2 ensure that purchasers or potential purchasers are informed of any significant potential risk so that they can seek expert advice if they so choose.
11.2 If the Agent is unable to obtain confirmation under clause 11.1.1, the Agent shall inform purchasers or potential purchasers of any significant potential risk identified by the Agent consistent with rule 10.7(b) of the Real Estate Agents Act (Professional Conduct and Client Care) Rules 2012.
11.3 If at any time during the term of the agency the Client directs the Agent not to disclose to purchasers or potential purchasers any known defects or any significant potential risks for hidden or underlying defects identified by the Agent contrary to the terms of this agreement or to the Real Estate Agents Act (Professional Conduct and Client Care) Rules 2012, the Agent may then cancel this agreement by written notice.

12.0 Anti-Money Laundering and Countering Finance of Terrorism Act 2009 (AML/CFT Act)

12.1 The Client acknowledges and agrees that:
12.1.1 The Agent may collect information about the Client to undertake customer due diligence and take any other steps that may be necessary to comply with the AML/CFT Act;
12.1.2 The Agent may use customer due diligence services (including electronic based services from a third party) to verify the Client's identity and customer due diligence under the AML/CFT Act;
12.1.3 Until customer due diligence has been completed, this agreement is not effective and a business relationship for the purposes of the AML/CFT Act is not formed. Until customer due diligence has been completed the Agent is not able to perform any of its obligations under this agreement. The Agent shall notify the Client in writing when customer due diligence has been completed.

13.0 Use of Materials

13.1 Any photographs or display material may be obtained, displayed or used for promotional purposes by the Agent as necessary and be subsequently used by the Agent for promotional purposes unless otherwise instructed.
13.2 The Client retains a continuing, non-exclusive right to use photographs, videos, floor plans and other marketing material created for the Property and paid for by the Client as part of the Marketing Costs, for the purpose of marketing, selling, or otherwise dealing with the Property, including after this agreement ends and if another agency is subsequently appointed. Any continuing use of that material by the Agent for the Agent's own promotional purposes after the Property is sold is limited to a period of 12 months following settlement, or is otherwise subject to the Client's prior consent.

14.0 Confidentiality

14.1 Except as otherwise provided in this agreement (such as the terms expressed in 6.0) or as agreed between the parties, neither party may disclose any information, commissions, fees, and marketing costs contained in this agreement to a third party other than:
14.1.1 as required by law;
14.1.2 in good faith and in proper furtherance of the objects of this agreement;
14.1.3 to those of its employees, officers, professional or financial advisers and bankers as reasonably necessary but only on a strictly confidential basis;
14.1.4 to enforce a party's rights or to defend any claim or action under this agreement; or
14.1.5 where the information is already in the public domain.

15.0 Authority to use property information

15.1 The Agent is committed to compliance with all applicable laws, including privacy and copyright laws. The Client confirms that it has obtained all necessary authorisations (including under privacy law) to allow the collection, storage, use and disclosure of information (including information about an identifiable individual ("Personal Information")) pertaining to the Property for the purposes of:
15.1.1 the Agent's marketing and promotional activities;
15.1.2 listing the Property on real estate and property listing websites (including the Agent's website and third-party websites);
15.1.3 collating and sharing property information for research, reports statistical analysis, and other purposes, including in particular sharing listing and sales data with the Real Estate Institute of New Zealand Inc ("REINZ") for inclusion in the aggregated databases, reports and materials made available by REINZ to people in the real estate industry and others;
15.1.4 generating and publishing sales and other reports (whether generated by the Agent, REINZ or by any third party accessing such information); and
15.1.5 any related purposes.

16.0 Health and Safety

16.1 The Client acknowledges and understands that the Agent has obligations under the Health and Safety at Work Act 2015 to ensure the health and safety of workers (including employees, contractors, and employees of contractors) and the general public while undertaking work in relation to the sale and purchase of the Property in accordance with this Agreement.
16.2 The Client shall give the Agent all reasonable assistance and information to ensure that no hazards or risks at, or arising from, the Property affect the health and safety of any person while the Agent is performing its role under this Agreement, including by:
16.2.1 promptly providing to the Agent information about any and all hazards or risks at the Property which are known to the Client; and
16.2.2 complying with any reasonable instructions given by the Agent about actions required to be taken to address any identified hazards of risks at the Property in order to ensure the health and safety of people visiting the Property at the request or invitation of the Agent.
16.3 In circumstances where the Client is a 'person conducting a business or undertaking' (as that term is defined in the Health and Safety at Work Act 2015) it must:
16.3.1 comply with its obligations under the Health and Safety at Work Act 2015 (and supporting Regulations) at all times during the term of the Agreement; and
16.3.2 consult, cooperate, and coordinate activities with the Agent and any other relevant party in respect of any work undertaken in relation to the sale and purchase of the Property so as to ensure that all parties understand the nature of the work, the risks arising from the work, and the controls to be implemented to mitigate those risks, and to enable the Client and the Agent to verify that the risks are being controlled and the work is being performed safely and in accordance with this Agreement
16.4 The Client instructs and authorises the Agent to require every visiting professional (including but not limited to tradespeople, valuers, building inspectors, photographers, stagers and other contractors) attending the Property in connection with its sale to provide their

name and contact details and sign the Agent's standard property access form before entering the Property. This instruction is given to help the Agent maintain the security of the Property and keep an accurate record of everyone who has attended it.

17.0 Notices

17.1 Any notices given under or relating to this agreement may be served or given by hand, mail, or email. If there is more than one set of contact details for the Client, then a copy of this agreement and any notices may be sent to any one of them and notice to any person that is listed as a Client shall be notice to all of them. Notices to the Client may also be sent to the Client's lawyer unless otherwise instructed.

17.2 This agreement and notices under it shall be deemed to have been received:

17.2.1 when delivered in person, at the time of delivery; or

17.2.2 if sent by mail, 5 working days after being mailed; or

17.2.3 if sent by fax, when the sender receives a transmission report showing the transmission has been satisfactorily completed; or

17.2.4 if sent by email: when the email enters the recipient's information system.

18.0 General

18.1 The termination of this agreement for any reason is without prejudice to any rights, powers, authorities, or remedies of the parties including the Agent's right to commission and reimbursement of the agreed marketing costs and/or expenses.

18.2 Any reference to "working day" shall have the meaning ascribed to it under the Legislation Act 2019.

19.0 Complaints and Dispute Resolution Procedures

19.1 Pursuant to Rule 12 of the Real Estate Agents Act (Professional Conduct and Client Care Rules) 2012, all licensed Real Estate Agents are required to have a written in-house complaints and dispute resolution procedure. That procedure is set out below.
You do not have to use our complaints and resolution procedure. You may make a complaint directly to the Real Estate Agents Authority at any time. You can make a complaint to the Real Estate Agents Authority even if you choose to also use our procedures.
Our complaints and dispute resolution procedures are designed to provide a simple and personalized process for resolving any complaint you might have about the service you have received from our agency. The process is as follows:

19.1.1	Contact the Manager:	**Tim McGuire** **Phone: 027 562 7207** **Email: tim@mcguire.co.nz**	Tell the manager who you are complaining about and what your concerns are. Let the manager know what you would like done about your complaint.

19.1.2 The manager may ask you to put your complaint in writing so that he or she can investigate it the manager shall need a brief period to talk to the team members involved. We promised to come back to you within 10 working days with a response to your complaint. That response may be in writing as part of the response we might ask you to meet with members of our team to discuss the complaint and try and agree a resolution;

19.1.3 If we are unable to come to an agreed resolution after a meeting or if you don't wish to meet with us, then we shall provide you with a written proposal to resolve your complaint;

19.1.4 If you do not accept our proposal, please try and advise us in writing within five working days. You can of course suggest another way of resolving your complaint;

19.1.5 If we accept your preferred resolution, we shall attempt to implement that resolution as soon as possible if we decline your preferred resolution, we may invite you to mediate the dispute;

19.1.6 If we agree to mediate the complaint but do not settle the complaint at mediation, or we do not agree to mediate the dispute, then that shall be the end of our process.

19.2 You can still make a complaint to the Real Estate Authority in the first instance and even if you use these procedures, you can still make a complaint to the Real Estate Authority at any time at The Real Estate Authority, C/O P.O. Box 25-371, Wellington 6146 New Zealand, 0800 37 677322 or 04 471 8930.

20.0 Other Agreements with Prospective Purchasers and Related Matters

20.1 This clause 20 applies where a person who inquired about, viewed, attended, or was otherwise introduced to the Property during the marketing or sale process (an "Introduced Person") separately engages the Agent, whether during or after the term of this agreement, in relation to a different property or a different transaction unrelated to the sale of the Property (a "Separate Engagement"). This clause does not apply to, and does not affect, any dealing by the Agent with an Introduced Person in relation to the purchase of the Property itself, which remains governed by clause 20.5 and the Agent's fiduciary and statutory obligations to the Client.

20.2 **No Entitlement to Fees from Separate Engagements**: The Client acknowledges and agrees that the Client has no right, entitlement, or claim to any commission, fee, referral payment, or other remuneration earned by the Agent under a Separate Engagement, however that claim is described (including as a referral fee, finder's fee, or introduction fee), and whether it is said to arise from this agreement, from the Client's marketing of the Property, or from the fact that the Introduced Person first became known to the Agent through the sale of the Property.

20.3 **Basis for This Position**: As a matter of ordinary contract law, the Client is not a party to, has no privity of contract with respect to, and has provided no consideration for, any Separate Engagement, and has not been assigned any right under it. The commission and fees payable under this agreement are payable only in respect of the sale of the Property, as set out in Appointment of Agency (D) and clause 5. Nothing in this agreement, and no legal principle known to the Agent, entitles the Client to a share of remuneration the Agent earns from another person's independent decision to separately engage the Agent.

20.4 **Confidentiality Owed to Third Parties**: The Agent owes obligations of confidentiality and privacy to purchasers and other members of the public who deal with the Agent, including obligations under the Privacy Act 2020 not to use or disclose a person's information for a purpose other than the purpose for which it was provided. Many purchasers deal with the Agent rather than directly with the Client for this reason, so that their personal information and their dealings with the Agent are not shared with the Client. Accordingly, the Agent is not obliged to confirm, deny, or disclose to the Client whether, when, or how any Introduced Person has separately engaged the Agent, and the Client agrees not to request such disclosure, and not to treat the Agent's inability or unwillingness to make it as evidence of, or as a basis for inferring, any wrongdoing or any entitlement to compensation under this clause 20.

20.5 **No Effect on the Agent's Obligations Regarding the Property Itself**: Nothing in this clause 20 limits, waives, or purports to limit or waive the Agent's fiduciary duty to the Client, or the Agent's obligations under the Real Estate Agents Act 2008 (including section 136, disclosure of the Agent's own interest in a transaction) or the Real Estate Agents Act (Professional Conduct and Client Care) Rules 2012, in relation to the sale of the Property itself. If the Agent wishes to deal with an Introduced Person in relation to the purchase of

the Property in a way that gives the Agent a financial or other benefit, the Agent will give the Client specific written disclosure of that dealing before it proceeds, consistent with those obligations.

20.6 **Retention of Agent's Intellectual Property**: The Client acknowledges and agrees that all intellectual property rights (including but not limited to copyrights, trademarks, designs, and any other proprietary rights) in materials created, developed, or used by the Agent in connection with this agreement—such as photographs, videos, marketing plans, promotional materials, digital content, or any other creative works ("Agent's IP")—shall remain the exclusive property of the Agent, pursuant to the Copyright Act 1994. The Client is granted a limited, non-exclusive, revocable license to use the Agent's IP solely for the purpose of marketing and selling the Property during the term of this agreement. Upon termination or expiry of this agreement, this license shall automatically cease, and the Client shall have no further rights to use, reproduce, distribute, or claim ownership of the Agent's IP. The Agent may continue to use the Agent's IP for its own promotional or business purposes, subject to clause 14.0 (Confidentiality) and the Privacy Act 2020.

20.7 This clause does not affect the Agent's obligations under the Real Estate Agents Act 2008 or the Real Estate Agents Act (Professional Conduct and Client Care) Rules 2012, including duties to act in good faith and disclose known conflicts of interest. If the Client persistently asserts, or instructs the Agent to act on, a claim of the kind excluded by clause 20.2, after the Agent has drawn this clause to the Client's attention, the Agent may treat that as a request to do something unethical for the purposes of clause 2.2.1, and may cancel this agreement accordingly.

21.0 Licensee Acquiring an Interest in the Property

21.1 If the Agent, any Licensee providing real estate agency work under this agreement, or any person related to the Agent or a Licensee, wishes to directly or indirectly acquire any interest in the Property while this agreement is in force, sections 134 and 135 of the Real Estate Agents Act 2008 and the Real Estate Agents (Duties of Licensees) Regulations 2009 apply, and this clause sets out how the Agent will comply with them.

21.2 **Client Consent Required**: The Agent will not acquire, and will ensure that no Licensee or related person acquires, any interest in the Property unless the Client has first given written consent in the form prescribed by the Real Estate Agents (Duties of Licensees) Regulations 2009 (Form 2).

21.3 **Independent Valuation**: Before seeking the Client's consent, or, with the Client's agreement, within 14 days of obtaining it, the Agent will provide the Client with a valuation of the Property from an independent registered valuer (or, if the Property is a business, an independent qualified statutory accountant). The Agent will pay for this valuation.

21.4 **Consequences of Non-Compliance**: If the Agent does not comply with clauses 21.2 and 21.3, the Client is entitled to cancel this agreement, and the Agent is not entitled to any commission in respect of the sale of the Property to the Agent, a Licensee, or a related person, regardless of whether the Client cancels this agreement, as set out in section 135 of the Real Estate Agents Act 2008.

21.5 This clause 21 is separate from, and does not limit, clause 20, which concerns Separate Engagements between the Agent and Introduced Persons in relation to other properties, not the acquisition of the Property itself.

22.0 Client Acknowledgements

Note: Acknowledgment by the Client is not sufficient to discharge the Agent of the duty to give the recommendations, provide information and/or perform functions described below. Unless the Agent has, in fact, complied with the subject matter of the acknowledgment, the Client should not give the acknowledgment.

22.1 The Client, prior to signing this agreement, acknowledges and agrees that the Client has been:

22.1.1 recommended to seek legal advice and a reasonable opportunity to obtain legal advice was allowed by the Agent;

22.1.2 recommended that the Client can, and may need to, seek technical or other advice and information and a reasonable opportunity to do so was provided;

22.1.3 given a copy of the approved guide relating to agency agreements published by the Real Estate Agents Authority https://www.rea.govt.nz/assets/Uploads/Resources/Guides/Agency-agreement-guide.pdf

22.1.4 given a copy of the approved guide relating to sale and purchase agreements published by the Real Estate Agents Authority. https://www.rea.govt.nz/assets/Uploads/Resources/Guides/Sale-and-purchase-agreement-guide.pdf
Further information on agency agreements and contractual documents is available from the Real Estate Agents Authority.

22.1.5 made aware of the Agent's in-house complaints and dispute resolution procedures and that a copy of this has been made available;

22.1.6 made aware that the Client may access the Real Estate Agents Authority's complaints process without first using the Agent's in-house procedures and that any use of the in-house procedures does not preclude the making of a complaint to the Real Estate Agents Authority;

22.1.7 advised and has had an explanation of the circumstances in which the Client could be liable to pay full commission to more than one Agent in the event a transaction is concluded;

22.1.8 advised when this agency agreement comes to an end;

22.1.9 made aware of the various possible methods of sale and how the chosen method could impact on the individual benefits that the Licensees may receive;

22.1.10 made aware of the Agent's disclosure obligations as set out in clauses 11.1 and 11.2; and

22.1.11 given an appraisal for the Property in writing or where no directly comparable or semi-comparable sales data exists, this has been explained in writing;

22.1.12 recommended to seek specific legal and taxation advice if the Property

i. has been owned for less than five years; or
ii. is owned by a trust, a company, or property investor, or by a person who is offshore; or
iii. if the property is not the client's main home; or
iv. is being subdivided for the purposes of sale;

22.1.13 recommended to seek professional advice (tax and/or legal advice) on the income tax implications of the purchase price allocation rules (where applicable)

22.1.14 advised to obtain a Land Information Report (LIM Report) from the Local Authority, and

i. to seek legal and technical advice regarding its contents; and
ii. to provide it to the Agent to examine and distribute to prospective purchasers to examine for the purposes of due diligence.

23.0 Appraisal

23.1 The appraisal in writing may be appended to this document and if not appended it can be viewed at this web address:

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